

SEPARATE OPINION OF M. SCHÜCKING.

[*Translation.*]

I do not concur in the opinion expressed by the Court in its judgment; on the other hand, I find myself entirely in agreement with the dissenting opinion of Jonkheer van Eysinga, and with the arguments employed therein. The importance of one of those arguments is, however, so great that I am led to add a few observations upon it.

M. van Eysinga's dissenting opinion appears to me to show that the Congo Act intended to prohibit a limited group of its authors from making any changes in the Act; if that is so, a tribunal cannot refrain from considering what are the ensuing consequences as regards the validity of a convention concluded in violation of that prohibition by some of the authors of the Congo Act.

The doctrine of international law in regard to questions of this kind is not very highly developed. There is no clear and generally recognized doctrine regarding "acts which are automatically null and void", and acts of which the nullity is only relative, that is to say that they are valid in relations between their signatories, but are open to be impugned by other parties. The Court seems to have proceeded on the assumption that, even if there was a prohibition which debarred a limited group of the signatories of the Congo Act from modifying its terms—a question which the Court has not gone into—the new Convention continues nevertheless to be legal and valid, until such time as the Powers which were not invited to participate in it take steps to assert their rights.

In my opinion, this view is not in conformity with the will of the States which drew up the Congo Act. Once it is recognized that the intention was to create a Statute of the Congo which should not be liable to be altered by some only of its authors, the will of the Powers must be interpreted as being that no convention can acquire valid existence that is contracted in disregard of the rule forbidding a limited group of signatories of the Act to modify its terms. The antecedents of the Berlin Conference show that the intention was to set aside all treaties concluded between certain Powers only in regard to their interests in the Congo Basin: indeed, two States (the United Kingdom of Great Britain and Portugal) had to discard a commercial treaty concluded prior to the Berlin Act (Feb. 26th, 1884), and that particular treaty was the real cause of the Berlin Act. It is beyond doubt that the signatory States of the Congo Act desired to make it absolutely impossible, in the future,

for some of their number only to amend the Congo Act, seeing that any modifications thus introduced would have been a danger to their vested rights in that vast region. Accordingly, in my view, the nullity contemplated by the Congo Act is an absolute nullity, that is to say, a nullity *ex tunc*, which the signatory States may invoke at any moment, and the convention concluded in violation of the prohibition is automatically null and void. The fact that, up to the present time, those signatories of the Berlin Act who did not participate in the Convention of Saint-Germain have not impugned the latter instrument, cannot, therefore, in any way remedy the absolute illegality of its conclusion. It remains null and void, because it transgresses the bounds which the authors of the Berlin Act established for themselves when they subscribed to that Act.

I think that the case in which a convention has to be regarded as automatically null and void is not an entirely isolated case in international law. The Covenant of the League of Nations, as a whole, and more particularly its Article 20, in which the Members undertake not to enter into obligations or understandings *inter se* inconsistent with its provisions, would possess little value unless treaties concluded in violation of that undertaking were to be regarded as absolutely null and void, that is to say, as being automatically void. And I can hardly believe that the League of Nations would have already embarked on the codification of international law if it were not possible, even to-day, to create a *jus cogens*, the effect of which would be that, once States have agreed on certain rules of law, and have also given an undertaking that these rules may not be altered by some only of their number, any act adopted in contravention of that undertaking would be automatically void. If that is the situation, and if the Convention of Saint-Germain is not merely an act which the signatory States of the Congo Act are entitled to impugn, but one which is, in itself, invalid, then, as M. van Eysinga has already pointed out, the Court ought not to apply the Convention. Our Court has been set up by the Covenant as the custodian of international law. It is an essential principle of any court, whether national or international, that the judges may only recognize legal rules which they hold to be valid. There is nothing to show that it was intended to disregard that legal principle when this Court was instituted, or that it was to be obliged to found its decisions on the ideas of the parties—which may be entirely wrong—as to the law to be applied in a given case. The terms of Article 38 of the Statute—which indicates, in the first place, as the source of law for the Court's decisions "international conventions, whether general or particular, establishing rules expressly recognized by the contesting States"—cannot be intended to mean that

the Court is bound to apply conventions which it knows to be invalid. The Court would never, for instance, apply a convention the terms of which were contrary to public morality. But, in my view, a tribunal finds itself in the same position if a convention adduced by the parties is in reality null and void, owing to a flaw in its origin. The attitude of the tribunal should, in my opinion, be governed in such a case by considerations of international public policy, even when jurisdiction is conferred on the Court by virtue of a Special Agreement.

(Signed) W. SCHÜCKING.